The NSA IG's portion of the classified report outlined what it called "a collection gap," noting that existing surveillance legislation (particularly the Foreign Intelligence Surveillance Act) dated from 1978, a time when most communications signals traveled via radio or telephone lines, rather than fiber-optic cables and satellites. In essence, the agency was arguing that the speed and volume of contemporary communication had outpaced, and outgrown, American law—no court, not even a secret court, could issue enough individually targeted warrants fast enough to keep up—and that a truly global world required a truly global intelligence agency. All of this pointed, in the NSA's logic, to the necessity of the bulk collection of Internet communications. The code name for this bulk collection initiative was indicated in the very "dirty word" that got it flagged on my system: STLW, an abbreviation of STELLARWIND. This turned out to be the single major component of the PSP that had continued, and even grown, in secret after the rest of the program had been made public in the press.

STELLARWIND was the classified report's deepest secret. It was, in fact, the NSA's deepest secret, and the one that the report's sensitive status had been designed to protect. The program's very existence was an indication that the agency's mission had been transformed, from using technology to defend America to using technology to control it by redefining citizens' private Internet communications as potential signals intelligence.

Such fraudulent redefinitions ran throughout the report, but perhaps the most fundamental and transparently desperate involved the government's vocabulary. STELLARWIND had been collecting communications since the PSP's inception in 2001, but in 2004—when Justice Department officials balked at the continuation of the initiative—the Bush administration attempted to legitimize it ex post facto by changing the meanings of basic English words, such as "acquire" and "obtain." According to the report, it was the government's position that the NSA could collect whatever communications records it wanted to, without having to get a warrant, because it could only be said to have *acquired* or *obtained* them, in the legal sense, if and when the agency "searched for and retrieved" them from its database.

This lexical sophistry was particularly galling to me, as I was well aware that the agency's goal was to be able to retain as much data as it could for as long as it could—for perpetuity. If communications records would only be considered definitively "obtained" once they were used, they could remain "unobtained" but collected in storage forever, raw data awaiting its future manipulation. By redefining the terms "acquire" and "obtain"—from describing the act of data